

apparently non-existent case to support his argument. By citing to a non-existent case that is inconsistent with applicable California law, counsel has engaged in potentially unethical conduct by misrepresenting the law to the court and the opposing party. Therefore, the court orders counsel to appear and explain why he has cited to a non-existent case and misstated the law to the court. If he does not provide a satisfactory explanation, the court may impose sanctions against him.

Also, the court notes that Mr. Abernathy has previously submitted the same non-existent citation and misstatement of the law in another case that came before Judge Skiles earlier this month, *Ledesma-Luna v. General Motors, LLC*, case no. 24CECG05553. The hearing in *Ledesma-Luna* took place after the reply brief in the present case was filed, but the court is still concerned that Erskine Law and Mr. Abernathy have apparently filed multiple briefs in various cases that provide the same false and misleading citations and arguments. They also failed to withdraw the reply in this case, despite their promise to withdraw any misleading briefs at the last hearing. Therefore, the court will consider imposing sanctions on Mr. Abernathy for his repeated submission of false or misleading briefs in this court.³

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 18, 2026.
(Judge's initials) (Date)

³ The court will not rule on the parties' evidentiary objections because none are material to the disposition of GM's motion. (Code Civ. Proc., § 437c, subd. (q).) Furthermore, objections must be submitted in the proper format required by California Rules of Court, rule 3.1354 (filed separately, numbered consecutively, quoting the objectionable material, and clearly stating the grounds for objections). Here, the parties have not submitted properly formatted objections, so the court declines to rule on the objections.

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Tentative Ruling

Re: ***Hrair Messerlian v. Service Employees International Union, Local 1000***
Superior Court Case No. 24CECG02860

Hearing Date: August 19, 2026 (Dept. 403)

Motion: by Plaintiff to Tax Costs

Tentative Ruling:

To deny.

Explanation:

The Motion is Untimely

"Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended [by two court days] as provided in Code of Civil Procedure section 1010.6(a)(3)." (Cal. Rules of Court, rule 3.1700(b)(1), emphasis added.) The parties may agree to extend the time for filing, but this agreement must be confirmed in writing, specify the extended date for service, and be filed with the clerk. (*Id.*, rule 3.1700(b)(3).)

Plaintiff failed to file the motion to tax costs within 15 days and the two additional court days for electronic service of the cost memorandum. No agreement between the parties extending the time to file was filed with the court. The court intends to deny the motion on this procedural basis.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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